

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**201900536583CLCL: Wells Fargo Bank NA vs. Jerzeth Fisher
09/02/2026 in Department 40
Motion to Vacate**

Tentative Ruling:

The Court continues the hearing to October 5, 2026 at 8:20AM to allow Plaintiff time to properly serve the motion and related documents on opposing counsel. The proofs of service submitted by Plaintiff are not compliant because they fail to include required information and they are executed by Plaintiff.

Per CCP 1013a:

An affidavit setting forth the exact title of the document served and filed in the cause, showing the name and residence or business address of the person making the service, showing that he or she is a resident of or employed in the county where the mailing occurs, that he or she is over the age of 18 years and not a party to the cause, and showing the date and place of deposit in the mail, the name and address of the person served as shown on the envelope, and also showing that the envelope was sealed and deposited in the mail with the postage thereon fully prepaid.

It is also unclear whether Plaintiff served counsel of record for the opposing party or why he has served the individuals identified on his proof of service. Plaintiff shall correct all service issues and ensure the proper individuals have been served. Code-compliant proofs of service must be filed with the court no later than September 11, 2026. Plaintiff shall also give notice of the continued hearing date, with proper proof of service attached.